

## Priy Shankar Pandey v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 21 October 2024 · 2024:AHC:167473-DB · WRIT - C No. 21791 of 2024 · **Writ petition disposed of; petitioner directed to apply under Clause 3, Works of Licensees Rules, 2006, with status quo pending decision**

### HEADNOTE

Under Clause 4.5(d) of the U.P. Electricity Supply Code, 2005, a person over whose land an electricity supply line is being laid has a right to object to the laying of that line. Clause 3 of the Works of Licensees Rules, 2006 empowers the District Magistrate, Commissioner of Police, or other authorised officer to resolve such an objection, balancing the landowner's rights against the public interest in the work (e.g. rural electrification) not being unduly stalled.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.5(d)

A landowner's objection to an electric pole/line erected on his private property to supply neighbouring residents is to be resolved by the District Magistrate/Commissioner of Police/authorised officer under Clause 3 of the Works of Licensees Rules, 2006, balancing his Clause 4.5(d) right against the public interest in the electrification work

#### QUESTION

How is a dispute to be resolved where a landowner objects to a new electric pole/line being erected on his private property to supply electricity connections to village residents, and the residents contend the public work should not be stalled?

#### HOLDING

The landowner has a right under Clause 4.5(d) of the Supply Code to object to a supply line being laid over his land; that objection is to be resolved under Clause 3 of the Works of Licensees Rules, 2006 by the District Magistrate, Commissioner of Police, or other authorised officer, who must balance the landowner's rights against the public interest in not unduly stalling the electrification work. The petitioner was directed to file an application under Clause 3 (with a supporting affidavit, documents, and photographs) within three weeks; the authority was directed to decide the application within eight weeks after hearing all necessary parties, with status quo to be maintained in the interim.

¶ unnumbered order

#### LIMITING FACTS

The petitioner objected to a new electric pole being erected on his private property and to an electric line being routed from a pole on his land to supply village residents, who in turn contended the petitioner was obstructing an urgently-needed public electrification work.

### PRINCIPLE TAGS

**clause-4.5d-landowner-objection-to-supply-line** A landowner's Clause 4.5(d) right to object to a supply line over his land is vindicated through the Clause 3, Works of Licensees Rules 2006 resolution mechanism before the District Magistrate/Commissioner of Police, balancing private property rights against public electrification interests.

¶ unnumbered order

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE POLE/LINE PLACEMENT ON THE PETITIONER'S LAND SHOULD PROCEED OR BE RELOCATED

Not decided; left to the Clause 3, Works of Licensees Rules 2006 authority after hearing all parties. ¶ unnumbered order

